

DEFENDANT'S ORIGINAL ANSWER

TEXAS DISTRICT COURT
TRAVIS COUNTY, TEXAS

ACME HEALTHCARE SOLUTIONS, INC.,
Plaintiff,
v.
DR. SARAH J. WHITFIELD,
Defendant.

Cause No. D-2026-00187

DEFENDANT'S ORIGINAL ANSWER

Defendant Dr. Sarah J. Whitfield files this Original Answer and respectfully shows:

1. Defendant admits the allegations in paragraphs 1, 2, and 3 of the Petition.
2. Defendant denies the allegations in paragraphs 4, 5, and 6 of the Petition.
3. Defendant asserts the following affirmative defenses:
 - a. The Non-Compete Covenant is unenforceable as an unreasonable restraint of trade;
 - b. The 50-mile radius is overly broad and unnecessary to protect Company's legitimate business interest;
 - c. Company breached the Employment Agreement first by failing to pay earned bonuses;
 - d. The Non-Compete Covenant is void under Texas Business and Commerce Code Section 15.50.

WHEREFORE, Defendant requests that Plaintiff take nothing, that the Non-Compete Covenant be declared

Respectfully submitted,
David K. Park, Esq.
Park & Associates, LLP
Attorneys for Defendant